

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

RESPONDENTS' STATEMENT OF MATERIAL FACTS
TO WHICH THERE IS NO GENUINE DISPUTE

Pursuant to the Presiding Officer's Initial Order, Respondents Amazon.com Services LLC ("Amazon"), Amazon Logistics, Inc. ("ALI"), and Beijing Century Joyo Courier Service Co., Ltd. ("BCJ") respectfully submit this Statement of Material Undisputed Facts in support of Respondents' motion for summary disposition dated August 7, 2026.

I. The Parties' Contractual Relationship and the Publicity Provisions

1. Amazon and China United (the "Parties") entered into a transportation agreement in April 2022 consisting of the Amazon Global Logistics Main Transportation Agreement ("MTA"), the Nondisclosure Agreement ("NDA"), and a Work Order. *See* Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).¹

¹ Pursuant to Dkt. No. 5, Presiding Officer's Initial Order (Jan. 23, 2025), evidence relied upon that has previously been provided by either party is cited rather than included in the appendix as a differently numbered copy of the same evidence.

2. Section 7(2) of the MTA provides that China United “will not use Amazon’s trade name, trademark, service mark, logo, commercial symbol, or any other proprietary rights without Amazon’s prior written consent.” *See* Main Transportation Agreement, Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).
3. Section 7(1) of the MTA incorporates the NDA. *Id.*
4. Section 6 of the NDA prohibits China United from using “any trade name, trademark, logo or any other proprietary rights of Amazon (or any of its Affiliates) in any manner without prior written authorization of such use by a Vice President of Amazon (or its applicable Affiliate).” *See* Nondisclosure Agreement, Attach. B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025). Section 7(2) of the MTA and the similar provision in Section 6 of the NDA are referred to herein as the “Publicity Provisions.”
5. Neither the MTA nor the NDA required Amazon to obtain China United’s consent before referring publicly to China United or using China United’s name. *See* Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).
6. During contract performance, China United was aware of the Publicity Provisions and the restrictions they imposed on China United’s use of Amazon’s name. *See* APP 89-92, 97-99, 100-103, Teo Dep. Tr. at 14:21-15:6, 27:8-28:4, 36:15-39:23.
7. On April 19, 2022, China United requested permission to use Amazon’s name in a press release, ceremony, website materials, and public media accounts. *See* APP 63-66, Bates Nos. AMZ-00000174-AMZ-00000176; APP 97-99, Teo Dep. Tr. at 27:8-29:21.
8. Amazon denied China United’s April 19, 2022 request to use Amazon’s name. *Id.*
9. In July 2022, China United requested permission to identify Amazon in an IPO prospectus. *See* APP 67-70, Bates Nos. AMZ-00002642-AMZ-00002644.

10. Amazon denied China United's July 2022 request to use Amazon's name. *Id.*
11. From August 2022 through March 2023, without Amazon's approval, China United used Amazon's trade name across multiple public platforms on multiple occasions without written authorization from or notice to Amazon. *See* APP 106-110, 112-114, Transcript of Yew Ping Teo Deposition ("Teo Dep. Tr.") at 43:15-18, 45:20-24, 51:6-20, 52:22-53:21, 55:1-56:18, 57:2-8.
12. In September 2022, after China United had already published articles promoting its relationship with Amazon without Amazon's permission, China United requested consent to disclose its relationship with Amazon to China International Capital Corporation, a third party, to perform a due-diligence interview with China United's financial advisor for its upcoming IPO. *See* APP 72-75, Bates Nos. CUL003113-CUL003116.
13. In response, Amazon declined to provide information regarding its pricing or business practices but agreed to provide limited confirmation, for use in an internal due-diligence process and not publicly, that China United was a business partner of Amazon. *Id.*

II. Termination of the Parties' Agreement

14. On April 1, 2023, Amazon provided notice that it was electing to terminate the Work Order for convenience following the contractually required 90-day notice period. *See* APP 77, Bates No. AMZ-00002089.
15. Had the termination for convenience taken effect, the Work Order's liquidated damages provisions would have been triggered. *See* Work Order, Attach. C to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

16. Amazon continued to pay contract rates above market rates and China United's tariff rates after giving notice and until shipments under the contract ceased. *See* APP 153-154, St. Amand Expert Report at ¶¶ e-n; APP 189, McCown Expert Rebuttal Report at ¶ 5.
17. Amazon discovered that China United had breached Section 7(2) of the MTA prohibiting use of Amazon's name without prior written consent. *See* APP 79-82, Bates No. AMZ-00002218-AMZ-00002221.
18. The Parties' agreement provided that unauthorized use of Amazon's name constituted grounds for termination for cause. *See* Main Transportation Agreement § 1.5.(3), Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).
19. Amazon commenced a due diligence investigation into the events underlying the potential termination for cause. *See* APP 131-134, Transcript of David Cardadeiro Deposition at 127:2-130:14.
20. On June 7, 2023, Amazon issued a superseding notice terminating the Parties' agreement for cause, effective immediately. *See* APP 84-86, Bates No. AMZ-00000495-AMZ-00000497.
21. The first shipment under the Parties' agreement occurred on May 20, 2022. *See* APP 156, St. Amand Expert Report at ¶ 21.
22. The final shipment under the Parties' agreement occurred on June 19, 2023. *Id.*
23. At no point during the period of May 20, 2022 to June 19, 2023 did Amazon engage in any activity of false billing, false classification, false weighing, false reporting of weight, false measurement, or any similar unjust or unfair device or means. *See* APP 53-54, Dkt. No. 80, Complainant's July 10, 2026 Interrog. Resp., at 2-3.

III. China United's Fraud or Concealment Allegations

24. China United contends that Amazon's "inaction/silence" regarding China United's use of Amazon's name, coupled with Amazon's subsequent termination of the agreement for cause, constitutes concealment. *See* APP 53-54, Dkt. No. 80, Complainant's July 10, 2026 Interrog. Resp., at 2-3.
25. China United alleges that Amazon waived the Publicity Provisions by publishing a post on Amazon's WeChat platform that referenced China United and by not expressly objecting when China United later reposted that content. *Id.*
26. China United further alleges that Amazon waived the Publicity Provisions by failing to object to a welcome banner displaying Amazon's name and when an Amazon employee complimented photographs taken in front of that banner. *Id.*
27. None of the conduct identified by China United concerns the booking, tendering, transportation, release, or payment of or for any cargo shipment. *Id.*
28. None of the conduct identified by China United involves any alleged misrepresentation concerning any particular cargo or shipment. *Id.*
29. China United's allegations concern whether Amazon waived compliance with the Publicity Provisions and whether Amazon properly exercised its contractual termination rights. *Id.*

IV. China United's Reparations Claim

30. China United has presented no evidence of injury or loss from the Shipping Act violation it alleges. *See* APP 53-54, Dkt. No. 80, Complainant's July 10, 2026 Interrog. Resp., at 2-3; APP 93-95, Teo Dep. Tr. at 16:25-18:20; APP 124-126, Chen Dep. Tr. at 59:11-61:25.

31. China United asserts a reparations claim based on a tariff re-rating theory. *See* APP 155-160, St. Amand Expert Report at ¶¶ 17-31; APP 193-194, McCown Expert Rebuttal Report at ¶¶ 91-96; APP 115-118, Teo Dep. Tr. at 123:5-126:18.
32. China United had several “gaps” in its published FMC tariffs: one gap between May 20, 2022 when cargo started moving under the contract and August 9, 2022, and five gaps between the expiration of an applicable published tariff and the effective date of the next applicable published tariff. *See* APP 158, St. Amand Expert Report at ¶¶ 24-25, Figure 3.
33. China United presented two alternative methods of calculating alleged reparations using a “placeholder” rule to address the “gaps.” *Id.*
34. Under the first approach China United addressed the gap period between May 20, 2022 and August 9, 2022 by applying a “placeholder” rate rule that set out a non-rate weight-volume calculation equating to approximately \$35,000 per FEU. For the five remaining gap periods it used the rate of the previously expired tariff until the next tariff became effective. *See* APP 152, 158-160, 162-163, St. Amand Expert Report at ¶¶ 6, 25-26, 31, App. F; APP 170-171, 183-184, Transcript of David St. Amand Deposition (“St. Amand Dep. Tr.”) at 19:15-20:02, 156:8-157:11.
35. China United’s first re-rating approach yielded a reparations claim of \$157,413,949.00. *Id.* All of the reparations were attributable to the first gap period when the “placeholder” rate rule was used; for the remaining periods the contract rates were above the tariff rates used and the re-rating yielded negative reparations. *See* APP 176, 177, St. Amand Dep. Tr. at 99:04-99:08, 140:04-140:22; APP 201-204, McCown Dep. Tr. at 12:24-15:12; APP 162-163, St. Amand Expert Report, App. F; APP 194-195, McCown Expert Rebuttal Report at ¶¶ 94-95, 101.

36. China United’s “alternative” approach addressed all of the “gaps” in its tariffs by applying the “placeholder” rate rule with the non-rate weight-volume calculation that equated to approximately \$35,000 per FEU. *See* APP 152, 159, 160, St. Amand Expert Report at ¶¶ 6, 26, 31, App. I; APP 170-172, St. Amand Dep. Tr. at 19:18-20:02, 20:20-21:10.
37. That calculation yielded a reparations claim of \$384.4 million. Again, all of the reparations were attributable to the use of the “placeholder” rate rule for the “gap” periods, and for the remaining periods the contract rates were above the tariff rates used and the re-rating yielded negative reparations. *See* APP 160, 164, St. Amand Expert Report at ¶ 31, App. I; APP 179-182, 185-186, St. Amand Dep. Tr. 146:01-149:03, 158:17-159:14; APP 201-204, McCown Dep. Tr. at 12:24-15:12; APP 195-196, McCown Expert Rebuttal Report at ¶¶ 101, 116.
38. The non-rate weight-volume rule included the notation “Rate Related: N” and “Apply by Default: N.” *See* APP 88, CUL003430. This means, as it plainly states, that the rule was not rate-related and did not apply by default. *See* APP 208-210, McCown Dep. Tr. at 76:01-78:3.
39. China United’s expert confirmed that the regulation its re-rating theory is based on, 46 C.F.R. § 530.10, is inapplicable to this proceeding. *See* APP 140-142, 143-149, Kadian Dep. Tr. at 117:06-119:06; 120:11-126:04.

Respectfully submitted,

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August 7, 2026

CERTIFICATE OF SERVICE

I certify that on this 7th day of August, 2026 the aforesaid Statement Of Material Facts to Which There Is No Genuine Dispute has been filed electronically with the Secretary, with a copy to judges@fmc.gov and to the following parties of record, as provided by the Initial Order in this proceeding.

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